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Advogados

14 October 2025

Secretariat of the International Court of Arbitration
of the International Chamber of Commerce

Attn.: Ms Hjördis Birna Hjartardóttir
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ICC Case No. 29534/ICA3

**Elcomponics Holdings B.V v. Invictus GmbH, Invictus Cable GmbH and
Invictus Holding IC GmbH**

Comments to Claimant's Challenge of Sole Arbitrator

Dear Ms. Hjartardóttir,
Dear Ms. Tarnovschi,

By letter dated 7 October 2025, Claimant seeks to challenge the appointment of Ms. Friederike Schäfer as Sole Arbitrator pursuant to Article 14 of the Rules of Arbitration of the International Chamber of Commerce in force since January 2021 ("ICC Rules"). The ICC Secretariat, by letter dated 8 October 2025, invited Respondents to comment on Claimant's submission by 14 October 2025.

Claimant's challenge is based on two alleged grounds: Ms. Schäfer would lack (i) a specific legal background and (ii) qualification required in the present case.¹

Respondents categorically reject both assertions.

Ms. Schäfer is not only eminently qualified to serve as Sole Arbitrator in this matter – she clearly exceeds any expectations of independence, impartiality, and competence set by international arbitration standards. Her professional credentials, legal expertise, and extensive experience in international arbitration speak decisively in favor of her appointment.

¹ Claimant's letter dated 7 October 2025, p. 1.

In the following, Respondents will address Claimant's arguments in turn demonstrating that there is no requirement under the ICC rules or Section 10.1. of the SHA for a specific legal background (1.), and that Ms. Schäfer possesses precisely the qualifications and international arbitration expertise required to ensure a fair and competent adjudication of the present dispute (2.). Accordingly, the challenge to her appointment is entirely unfounded and must be dismissed.

1. No Requirement for Specific Legal Background

Claimant alleges that the present dispute requires the appointment of a sole arbitrator with a background in English law.² This argument fails for three key reasons:

First, as previously submitted, Respondents objected to the jurisdiction of the Sole Arbitrator, as the Shareholders' Agreement ("SHA") is not applicable to the present dispute.³ Respondents will not reiterate all arguments in full but reaffirm that the Share Purchase Agreement ("SPA") and the Completion Memorandum – not the SHA – provide the answers to the key issues in dispute between the Parties. These agreements provide for **Austrian substantive law**. It is the SPA that forms the legal basis for Claimant's primary claims and must therefore be treated as the central agreement for resolving this dispute.⁴ English law, to the extent it may be referenced, is at best ancillary to the determination of the core issues. In this context, the appointment of Ms. Friederike Schäfer – whose international arbitration expertise is complemented by her familiarity with Austrian law – is not only appropriate but essential to effectively adjudicate the present dispute.

Second, even assuming *arguendo* that English law under the SHA were determinative (*quod non*), Claimant's argument still fails: It is consistent with most arbitration rules and arbitration laws, that unless the parties have so provided in their arbitration agreement (which is not the case here), there is no requirement that the arbitrators possess any particular legal qualifications.⁵ Similarly, the ICC Rules do not mandate an arbitrator to possess any formal legal training, qualifications or education in any specific jurisdiction. Challenges based on alleged lack of legal qualification are exceedingly rare – and rightly so – and have consistently failed.⁶ The notion that an arbitrator must be rooted in a specific legal tradition is not only unfounded but fundamentally incompatible with the nature of international arbitration. This has been confirmed by several ICC cases similar to the present one.⁷

Lastly, the flexibility embedded in the ICC Rules is essential – particularly in cases like the present one, where the applicable substantive law is actively contested. While Claimant asserts that English law governs the dispute, Respondents have clearly demonstrated that Austrian law is decisive. In complex cross-border disputes it is often

² Claimant's letter dated 7 October 2025, p. 2.

³ Respondents' Answer to the Request for Arbitration dated 4 August 2025, ¶ 24.

⁴ Respondents' letter dated 21 July 2025.

⁵ *Born*, International Commercial Arbitration (3rd ed, 2024), p. 1884 (**RL-003**).

⁶ *Schwartz/Derains*, Guide to the ICC Rules of Arbitration (2nd ed, 2005), p. 160 (**RL-004**).

⁷ *Schwartz/Derains*, Guide to the ICC Rules of Arbitration (2nd ed, 2005), p. 162 (**RL-004**).

impossible to conclusively determine the applicable law prior to the appointment of the arbitrator. This uncertainty is precisely why the ICC Rules do not tie arbitrator qualifications to any specific legal system. Claimant's attempt to disqualify Ms. Schäfer on this basis is therefore not only premature but fundamentally flawed.

2. Ms. Schäfer's Legal Credentials Ensure Fair and Competent Adjudication of this Dispute

Claimant argues that Ms. Schäfer's alleged strong connection to the Austrian legal system creates a "*procedural imbalance*"⁸ to its detriment. This is unfounded for the following three reasons:

First, Claimant grossly overstates Ms. Schäfer's ties to Austrian law and simultaneously underestimates her proven ability to operate across legal systems. Ms. Schäfer is a German citizen and does not hold Austrian nationality. Her legal education and early career were entirely based in Germany where she completed both state examinations and served as a research assistant at the University of Osnabrück. She subsequently spent seven years in an international arbitration boutique law firm in Vienna, followed by eight years as Counsel at the ICC Secretariat in Paris, where Ms. Schäfer handled numerous ICC proceedings and scrutinized hundreds of arbitral awards, involving a wide range of jurisdictions. This extensive exposure makes her exceptionally well-qualified to determine the applicable law in this dispute and to apply it competently – whether Austrian, English, or otherwise. Claimant's argument is not only unfounded but ignores the breadth and depth of Ms. Schäfer's international arbitration experience.

Since 2022, Ms. Schäfer serves as a Partner at the German Desk of the international law firm formerly known as "Zeiler Floyd Zadkovich", headquartered in Austria but with offices in the United States, the United Kingdom, and Australia. The firm was strategically positioned to handle cross-border disputes, including those governed by English law. While the firm is based in Austria, Ms. Schäfer resides in France – further underscoring her international orientation and dispelling any suggestion of Austrian bias. The irrelevance of professional location has also been confirmed in previous arbitrations under the ICC Rules⁹ and the Rules of the Swedish Chamber of Commerce.¹⁰ Claimant's attempt to equate part of Ms. Schäfer's professional career with national bias and to frame her profile as Austria-centric is unfounded and ignores the international nature of Ms. Schäfer's profile and practice. Her appointment reflects precisely the kind of cross-border competence required to adjudicate this dispute effectively and impartially.

Second, Claimant subjected itself to the SPA and the Completion Memorandum with Respondents containing an express choice for Austrian law. Therefore, Claimant itself has considered it appropriate that its future disputes with Respondents – Austrian entities – will be resolved by arbitrators that have some proximity to Austria. It is not credible

⁸ Claimant's letter dated 7 October 2025, p. 4.

⁹ *Daele*, Challenge and Disqualification of Arbitrators in International Arbitration (2012), mn 7-162 (RL-005).

¹⁰ *Bassiri/Vijra*, The (ir)relevance of an arbitrator's nationality, in *Liber amicorum, Dirk De Meulemeester et al.* (eds, 2019) CEPANI 49, p. 49 referring to SCC Arbitration 2018/102 (RL-006).

that Claimant expected that arbitrators with no proximity to Austria or knowledge of Austrian law will be appointed to decide these disputes. Ms. Schäfer is exactly the profile of arbitrator that Claimant must have contemplated when entering into the set of agreements with Respondents. Claimant cannot now argue for her disqualification.

Third, Claimant's own argument highlights the importance of appointing an arbitrator with deep understanding of Austrian law. Claimant refers to Article V(2) of the New York Convention, noting that Austrian courts may refuse enforcement if an award contravenes mandatory Austrian law.¹¹ Yet, this only reinforces the need for an arbitrator who can competently navigate Austrian legal standards to ensure enforceability. Ms. Schäfer's familiarity with Austrian law – combined with her international arbitration expertise – makes her uniquely positioned to render an enforceable and procedurally sound award. Her appointment is not only appropriate but directly aligned with Claimant's own interest in securing a valid and enforceable outcome.

In light of the above, Respondents firmly maintain that the challenge brought by Claimant is entirely without merit. Ms. Schäfer's appointment is consistent with the ICC Rules and international arbitration practice. Her profile reflects the optimal combination of legal expertise, procedural competence, and global orientation required to adjudicate this dispute fairly and efficiently. Her qualifications are beyond reproach, and the arguments advanced by Claimant fail to establish any valid ground for disqualification.

Accordingly, Respondents respectfully request the ICC Court to dismiss Claimant's challenge. According to Appendix II Article 5 of the ICC Rules, Respondents also request reasons for the Court's decision.

Yours sincerely



Filip Boras

¹¹ Claimant's letter dated 7 October 2025, p. 4.

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